

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 42793/15
Karen HARUTYUNYAN
against Armenia

The European Court of Human Rights (Fourth Section), sitting on 8 December 2022 as a Committee composed of:

Anja Seibert-Fohr*, President*,
Armen Harutyunyan,
Ana Maria Guerra Martins*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 17 August 2015,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Karen Harutyunyan, was born in 1979. He was represented by Mr Safaryan, a lawyer practising in Yerevan.

The applicant's complaints under Articles 6 § 1 and Article 11 of the Convention concerning, respectively, the alleged violation of the applicant's right of access to a court and his freedom of assembly were communicated to the Armenian Government ("the Government"), who submitted observations on the admissibility and merits. The observations were forwarded to the applicant, who was invited to submit his own observations. No reply was received to the Registry's letter.

By letter dated 27 April 2022, sent by registered post, the applicant was notified that the period allowed for submission of his observations had expired on 4 April 2022 and that no extension of time had been requested. The applicant's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike an application out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. The applicant's representative received that letter on 1 June 2022. However, no response has followed.

THE LAW

In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention and the Protocols thereto, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the application.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 12 January 2023.

Viktoriya Maradudina Acting Deputy Registrar	Anja Seibert-Fohr President